

Final

THIS AGREEMENT made this _____ day of _____, 2013.

BETWEEN:

UNIFOR, AND IT'S
LOCAL 3005,
(Hereinafter called "UNIFOR"),

-and-

THE BOARD OF TRUSTEES OF THE RETIREES
HEALTH TRUST FUND (the "RHTF")
(Hereinafter called the "Trustees").

WHEREAS as a result of collective bargaining in 2002 UNIFOR deemed it is desirable to establish a plan of group extended health insurance benefits and such other types of benefits (the "Plan") as may from time to time be agreed upon and authorized by the Board of Trustees (the "Trustees"); and

WHEREAS it was the intent of UNIFOR to establish the Plan for the benefit of retired UNIFOR members who were employees of Magellan as further defined in this Trust Agreement; and

WHEREAS the Plan is funded principally, though may not be exclusively, through negotiated contributions from Magellan Aerospace Limited (Magellan) and/or its successors, and

WHEREAS it is deemed advisable and in the best interests of all concerned to establish a formal trust document and to appoint Trustees for the implementation and operation of the Plan and such other types of group benefits as may from time to time be agreed upon and authorized by the Trustees; and

WHEREAS under the Plan monies will be paid by Magellan to the Trustees which monies as and when received by the Trustees together with income earned thereon will constitute the Trust Fund to be held and administered by the Trustees for the participants of the Plan thereunder; and